

24NNCV01629 24NNCV01629

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-14

Motion: MOTION FOR SUMMARY ADJUDICATION FILED BY DEFENDANTS/CROSS-COMPLAINANT NANCY ZELAYA, INDIVIDUALLY AND AS CO-TRUSTEE OF THE JOSE A. ZELAYA TRUST

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Case Number: 24NNCV01629 Hearing Date: July 14, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

GLADIS
ORTIZ, et al.,

Plaintiff(s),

vs.

NANCY
ZELAYA, et al.,

Defendant(s).

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CASE NO.: 24NNCV01629

[TENTATIVE]

ORDER RE: MOTION FOR SUMMARY ADJUDICATION FILED BY DEFENDANTS/CROSS-COMPLAINANT
NANCY ZELAYA, INDIVIDUALLY AND AS CO-TRUSTEE OF THE JOSE A. ZELAYA TRUST

Dept.

3

8:30

a.m.

July 14,
2026

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The Motion for Summary Adjudication. Cross-complainant/defendant Nancy Zelaya ("Zelaya"), individually and as co-trustee of the Jose A. Zelaya Trust ("Zelaya Trust"), moves for summary adjudication on her cause of action for

partition by sale. The action involves the real property located at 1200 N. Orchard Drive, Burbank, California 91506 ("Property").

Cross-defendant/plaintiff Gladis Ortiz ("Ortiz"), appearing as the trustee of the Gladis Ortiz Living Trust ("Ortiz Trust"), does not oppose the motion with respect to partition by sale. Accordingly, the Court grants the motion for summary adjudication of the partition action and enters an interlocutory judgment determining that Nancy Zelaya, as trustee of the Zelaya Trust, and Ortiz, as trustee of the Ortiz Trust, each have a 50% interest in the Property. Zelaya's motion for summary adjudication on her cross-complaint's First Cause of Action for Partition by Sale of the Property is GRANTED.

Next, Zelaya moves for "summary adjudication" of her entitlement to attorneys' fees and costs incurred in this action for the common benefit. (Code Civ. Proc., § 874.010.) Attorneys' fees in a partition action may be awarded when the services were for the common benefit. However, the award of fees should not be made in an interim order but should be reserved for determination in the final judgment. (Williams v. Wells Fargo Bank & Union Trust Co. (1943) 56 Cal.App.2d 645, 652.) The statute cited by Zelaya, C.C.P. 874.110(a) allows the costs to be paid prior to judgment, but entitlement to attorneys' fees is not a proper subject for summary adjudication, which is limited to the categories enumerated in Code of Civil Procedure section 437c: one or more causes of action, one or more affirmative defenses, one or more claims for damages, or one or more issues of damages (as specified in Civil Code § 3294). Accordingly, the motion for summary adjudication on the issue of attorneys' fees and costs is DENIED.

Appointment of Partition Referee and

Proposed Interlocutory Judgment of Partition and Order Thereon. A partition by sale of the Property will require the Court to appoint a partition referee pursuant to Code of Civil Procedure section 873.010 et seq. The parties are ordered to meet and confer and provide the Court with a list of at least three proposed partition referees, and their credentials, not later than _____. The parties are also to meet and confer, and by that same date, provide the Court with a joint statement of objections, additions, and deletions, if any, to the Court's proposed INTERLOCUTORY JUDGMENT OF PARTITION AND ORDER THEREON set forth below.

INTRODUCTION

1. The real property in the County of

Los Angeles, State of California, which is the subject of this action, is a triplex having an address commonly known as 1200 North Orchard Drive, Burbank, California, and more particularly described as follows:

LOT 8 OF TRACT NO. 5200, IN THE CITY OF BURBANK, COUNTY OF LOS ANGELES, STATE OF CALIFORNIA, AS PER MAP RECORDED IN BOOK 96 PAGES 93 AND 94 OF MAPS, IN THE OFFICE OF THE COUNTY RECORDER OF SAID COUNTY.

2. The Property is currently owned by [Parties] as [] pursuant to []. Hereinafter, [Plaintiff and Defendants] may be collectively referred to as the "Parties" or individually as a "Party."

3. Division of the Property in kind would not be possible or practical and a partition by sale is appropriate and proper. The Property is to be sold based on the following provisions, and the proceeds divided among the Parties 50/50, and subject to any claims for allowance, accounting, contribution, or other compensatory adjustment among the Parties relating to the Property authorized by Code of Civil Procedure section 872.140 or otherwise allowable under California law, including but not limited to claims relating to periods of ouster, repair costs, mortgage payments, taxes, insurance, and other similar items.

PARTITION
BY SALE

4. Partition
by Private Sale: Partition of the Property shall be by private sale with the net proceeds of the sale divided following reimbursement of any costs or expenses under the provision of this Order.

5. Property
Shall Be Sold as Whole: The Property shall be sold as a whole and neither party shall separately, sell, lease, or otherwise encumber his/her interest in the Property.

6. Private
Sale by Referee: _____, shall be appointed as Partition Referee with authority to sell the Property at private sale

("Referee"). A report of the sale shall be made to the Court as provided by Code of Civil Procedure section 873.710 for confirmation by the Court. No bond shall be required of the Referee until such time as the Court confirms the sale of the Property, and the amount of such bond, if any, shall be determined by the Court.

7. Encumbrances:

If either Party has encumbered their interest in the Property (either by way of voluntary encumbrances such as a Deed of Trust or involuntary encumbrances such as a judgment or tax lien), the removal of the encumbrance shall be paid from the sale proceeds through escrow and shall be deducted from the share of the net proceeds belonging to the party who is responsible for the encumbrance.

8. Listing

Agreement: The Referee will hire a licensed California real estate Broker to market and sell the Property. The total broker fees shall not exceed five percent (5%) total. The Listing Agreement shall be for a period of no longer than one hundred and twenty (120) days. If the Property is not under contract for sale within the initial listing period set forth above, upon the expiration of the Listing Agreement, the Referee shall have the authority to either renew the listing agreement with the same real estate brokers/agents or select another real estate broker/agent to handle the sale by entering into a new listing agreement and continue to do so until the Property is sold.

9. Referee's

Authority. Referee shall have full authority to partition by sale the Property. The Referee is authorized to place the Property for sale on the market, retain any marketing analysis or advertisers, and undertake any and all other duties associated with selling the Property, including executing documents necessary for consummation of a sale.

The authority to execute all documents necessary for consummation of the sale shall include but not be limited to execution of all documents required by an escrow officer and/or title insurance company, such as a Statement of Information (or such similar document providing biographical information about the owners of the Property) and tax reporting documents for any party hereto who does not provide said information required by said document within ten (10) days of being provided said document. Furthermore, the Referee shall be authorized to sign any affidavits, on behalf of either of the parties hereto, for the benefit of a title insurance company in order to

provide title insurance to establish that the property is able to be transferred to a buyer. Based on the Referee's evaluation of the market data, the Referee shall set an initial listing price. The Referee shall be authorized to reduce the asking price for the Property as he determines if it is advisable in order to generate interest in the Property. The Property shall be sold on the best terms and price with no carry-back financing. Any sale entered into by the Referee shall be subject to Court confirmation before it is finalized.

10. Notice

of Sale. The Referee shall provide notice of the sale of the Property in the manner provided by Code of Civil Procedure section 873.640. Notice in that manner may be waived by agreement of all parties in writing without further order of this Court.

11. Possession

of the Property by Referee. The Referee shall have authority to take sole and complete possession of the Property, including all keys and access codes. The Referee is authorized to control access onto the Property including access to any and all structures and building at the Property. The Referee may engage the services of a locksmith for the purpose of entering the Property and changing any locks to a lock that is controlled by the Referee. The Parties are ordered within 48 hours to provide to the Referee any and all keys, alarm codes, or other means necessary to enter onto the property or any of the buildings or structures on the Property. The parties are ordered to remove all animals from the Property that would interfere with the Referee's possessory rights. The Referee is authorized to engage the services of the local animal control department to remove from the Property any and all animals that interfere with the Referee's right to access and possess the Property.

12. Enforcement

of Possession by Referee as to Parties. The Referee may, at his discretion, require that the Parties vacate the Property along with their personal property. If said Party does not vacate the Property upon request by the Referee, the Clerk of this Court is authorized and directed upon request by the Referee to issue a Writ of Possession authorizing the Sheriff to deliver possession of the Property to the Referee and to remove the parties or anyone claiming possession through them. For the purposes of Judicial Council form EJ-130, the Referee shall be shown as "assignee of record" in paragraph 3. The real property described in the Writ of Possession shall be the Property. The date of judgment on the Writ of Possession shall be the date this order is filed.

13. Procedure

for Sale Confirmation. The Referee shall sell the Property in the form and manner approved by this Order, in accordance with Code of Civil Procedure section 873.510 et seq., and shall seek Court confirmation of the sale following the procedures set forth in Code of Civil Procedure section 873.710 through 873.790. The Parties may make written motion to object to the sale. The Referee may seek court confirmation by (1) stipulation of the parties or (2) motion. If the time demands of the sale escrow so require, the Referee may seek approval by ex parte motion to this court.

14. Parties

as Purchasers of the Property. The Parties, as existing partial owners of the Property, may seek to purchase the Property from the Referee by either (1) submitting a written purchase offer during the time period that the Referee is accepting purchase offers for the Property or (2) by submitting an over bid at the time of court confirmation following the procedures and rules set forth in Code of Civil Procedure section 873.740. The Referee shall evaluate the offers from the parties and from any non-parties to determine which offer is the highest and best considering all terms.

15. Procedure

for Consummation of Sale Following Court Approval. Upon approval and confirmation of the sale of the Property by the Court and the payment of the purchase price, the Referee is authorized and directed to execute and deliver a deed of the Property transferring title to the buyers either in the name of the Referee or the name of the owners of the Property. The Parties shall fully cooperate with the Referee in all aspects in order to timely consummate the sale. As part of any escrow for a sale approved by the Court, the Parties shall cooperate with the Referee by completing and signing any state or federal tax-related forms requested by the escrow officer handling the sale, including without limitation the California 593-C form and federal tax forms certifying the citizenship of the sellers. Failure of any Party to cooperate with the Referee within ten (10) days of receiving the aforementioned tax documents, shall authorize the Referee to execute said documents on behalf of any Party refusing to timely provide the required tax forms.

16. Contracts

of the Referee with Professionals. The Referee is authorized to hire, employ, retain, and terminate consultants, contractors, architects, locksmiths,

brokers, professionals, accountants, property managers, engineers, surveyors, appraisers, security guards, investigators, auctioneers, property managers, and any other similar professionals or employees which the Referee deems necessary to assist him in the discharge of his duties. The Referee is authorized to enter into and execute contracts with companies and/or individuals authorized by this paragraph.

All reasonable expenses incurred in connection with the hiring and retention of authorized personnel shall be expenses of the Property and shall be paid by one or more of the following methods: (1) from the proceeds of the sale of the Property; (2) by loans made or obtained by the Referee for this purpose; or (3) by direct payment by the parties to the person or company providing services to the Referee. No matter which method of payment is made, all such reasonable expenses shall be paid or reimbursed by the Referee from the sale proceeds of the sale of the Property prior to any other distributions to the owners of the Property. The Referee shall have no obligation to expend funds to bring the Property into good and marketable condition, unless the owners provide sufficient funds for this purpose. In the event any funds are expended by the Referee toward the repairs, cleaning or maintenance of the Property, the Referee shall be reimbursed from the proceeds of the sale.

17. Application

of Proceeds to Pay for Expenses. From the proceeds that shall come into the Referee's possession, whatever the source, the Referee shall apply and disburse said fund, from time to time, in the following general order of priority, subject to change in the Referee's discretion:

a. To pay the expenses and charges of the Referee in the conduct of his office.

b. To pay all expenses reasonably necessary or incidental to the care, preservation and maintenance of the Property.

18. Professional

Fees of the Referee. Pursuant to Code of Civil Procedure section 873.010, the Court has authority to fix the reasonable compensation for services of the Referee. The Referee will charge hourly rates for his ordinary services as a Referee, and the percent listed above for his, or a listing broker's, services

as a broker (which will be split with any co-listing broker). The Referee shall be reimbursed for all expenses incurred on behalf of the Property upon the completion of the sale of the Property. Pursuant to Code of Civil Procedure section 873.010(4), the professional fees and costs of the Referee shall be a lien upon the Property commencing on the date of entry of this Order.

19. Costs

of Partition. The Court shall determine the apportionment of the attorney's fees and costs incurred by Plaintiff in bringing this action, Referee fees and costs (including those of any contractors necessary), and/or any other costs of partition, including broker fees, (collectively, the "Costs of Partition") pursuant to CCP § 874.010-874.110. The Parties may submit briefing on the issue, and the Referee may make a recommendation to the Court.

20. Financial

Accounts. The Referee is authorized to open one or more accounts at any federally insured bank, savings and loan, credit union, or similar financial institution for the purpose of holding funds associated with this case.

21. Further

Instructions. As allowed by Code of Civil Procedure section 873.070, the Referee or any party may seek further instructions from this Court concerning the duties of the Referee.

22. Liability

of the Referee. Pursuant to Code of Civil Procedure section 873.160, the Referee is not personally liable on contracts made or for expenses incurred, except as such liability is expressly assumed by the Referee in writing, or for any damages sustained on the Property.

23. Insurance.

The Referee shall determine whether a current policy of insurance covers the Property. The parties are hereby ordered to provide that information to the Referee upon request. The Referee may procure insurance on the Property if there is insufficient insurance coverage thereon, provided the Referee has funds for that purpose and, if insufficient funds exist, shall report to the Court for instructions.

FINAL DISTRIBUTION ORDER FOR PARTITION
BY SALE

24. Instructions

Relating to Sale Proceeds. After the Court has approved the sale of the Property and the Referee has completed the sale of the Property, the Referee shall submit a report to the Court with proposed disbursements from the sale proceeds (the "Sale Proceeds"). The written report for final distribution order shall cover the following subjects:

- a. Any liens and other encumbrances on the Property shall be deducted from the Sale Proceeds and paid from the sale escrow and apportioned to the party responsible for placing a lien or encumbrance on the Property.
- b. Any appraisal, escrow, title fees, closing costs, and other costs of partition shall be deducted from the Sale Proceeds and paid through the sale escrow.
- c. Any broker's fees or commissions shall be deducted from the Sale Proceeds and paid through the sale escrow.
- d. Any costs of the Referee shall be paid by the Referee from the Sale Proceeds or from other proceeds obtained by the Referee for that purpose.
- e. Any professional fees of the Referee shall be paid by the Referee from the Sale Proceeds subject to court confirmation.
- f. Any attorney's fees/costs of the parties approved by the Court shall be paid from the Sale Proceeds pursuant to the manner provided in the future by any Court order regarding any party's motion for attorneys' fees, if any, and the Memorandum of Costs.
- g. Any claim for allowance, accounting, contribution, or other compensatory adjustment among the parties relating to the Property authorized by Code of Civil Procedure section 872.140 or otherwise allowable under California law, including but not limited to claims relating to periods of ouster, repair costs, mortgage payments, taxes, insurance, and other similar items.

h. Any costs of partition allowed by

Code of Civil Procedure section 874.010. i. Distribution of net proceeds to the parties as allowed by Code of Civil Procedure section 873.820.

25. Retention

of Proceeds Until Court Order. Until the Court issues the final distribution order, the Referee shall hold all net proceeds in a segregated account. The net proceeds of the sale of the Property shall be distributed by the Referee in accordance with the terms of the final disbursement order to be entered by this Court.

26. Retention

of Jurisdiction. The Court shall retain jurisdiction pursuant to California Code of Civil Procedure §873.850 following confirmation of the sale of the Property to review the reports of the referee, if any, to order the manner in which the sale proceeds are to be disbursed, and to order equitable adjustments that the Court considers just and appropriate.

27. Participation

by Referee. The Referee shall be authorized, but not required, to participate in all court proceedings relating to the Property. The Referee may report to the court from time-to-time relating to issues with the Property and the status of sale efforts relating to the Property.

28. General

Powers. The Referee is authorized to execute and prepare all documents and to perform all acts, in the Referee's own name or the names of the owners of the Property, which are necessary or incidental to preserving, protecting, managing, and/or controlling the Property. The Referee may contact any utility provider to the Property (including without limitation water, gas, electricity, and the like) for the purpose of transferring, starting, or stopping utility service. In addition to the specific powers set forth herein, the Referee is hereby vested with general powers of Referees in cases of this type.

29. Orders

in Aid of the Referee. Plaintiff and Defendant, and their respective agents, employees, servants, representatives, and persons acting in concert with them or under their direction or control are hereby enjoined and restrained from:

- a. Interfering with or impeding the Referee in carrying out his duties;
- b. Withholding from the Referee any documents or records to be delivered from him pursuant to this order;
- c. Selling, leasing, transferring, mortgaging, or otherwise encumbering the Property or any part thereof;
- d. Doing any act that impairs or damages the Property or that reduces the value of the Property;
- e. Taking any actions that interfere with the ability of the Referee to have free and unfettered access to the Property, including but not limited to installing locks, chains, or other barriers to entry to the Property for the purpose of impeding the Referee's access to the property.

Further Hearing. The Court sets a further hearing on this matter on _____ to consider the Parties' proposed partition referees, and any objections, additions, or deletions to the Court's proposed Interlocutory Judgment of Partition and Order Thereon.

Dated
this 14th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from

the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.